

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1670

By: Reinhardt of the Senate

and

Moore of the House

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9 An Act relating to higher education; amending 70 O.S.
10 2021, Section 3206.3, which relates to research and
11 development at institutions of higher education;
12 directing certain policy established by the Oklahoma
13 State Regents for Higher Education to include certain
14 tiered system of ownership and require certain
15 compensation; adding area of encouragement for
16 certain development; requiring certain policies to be
17 reviewed with certain frequency; updating statutory
18 language; providing an effective date; and declaring
19 an emergency.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3206.3, is
24 amended to read as follows:

Section 3206.3. A. The Oklahoma State Regents for Higher
Education shall:

1. Establish, pursuant to the requirements of this paragraph, a
model policy, which to the extent not inconsistent with this section
may be adapted by the governing board of regents for each

1 institution within The Oklahoma State System of Higher Education,
2 regarding:

3 a. the use of facilities, whether consisting of real
4 property, personal property, intangible personal
5 property, or any combination of such properties,
6 within The Oklahoma State System of Higher Education,
7 for the purpose of conducting research, the principal
8 purpose of which is to develop or refine a product,
9 process, or idea in cooperation with a private
10 business entity in order to market the product,
11 process, or idea for profit,

12 b. the investment of value available to institutions
13 within The Oklahoma State System of Higher Education,
14 in private business entities or the receipt of royalty
15 income from a private business entity, or both, in
16 conjunction with research and development conducted on
17 the premises of or with the assistance of institutions
18 within The Oklahoma State System of Higher Education,
19 its faculty, staff, or students,

20 c. a method to inform the faculty, staff, students, and
21 third parties conducting research on the premises of
22 or with the assistance of the faculty, staff, or
23 students of an institution within The Oklahoma State
24

1 System of Higher Education of the policies developed
2 pursuant to this paragraph, and

- 3 d. the extent to which professors and other faculty and
4 students at institutions within The Oklahoma State
5 System of Higher Education may acquire property
6 interests in technology developed on the premises of
7 or with the assistance of an institution within The
8 Oklahoma State System of Higher Education or a
9 property interest in the revenues derived by the sale,
10 marketing, licensing, or other disposition of
11 technology by an institution within The Oklahoma State
12 System of Higher Education or by a private business
13 entity conducting research or engaged in the
14 development of technology on the premises of or with
15 the assistance of an institution within The Oklahoma
16 State System of Higher Education. The policy shall
17 include a tiered system of ownership based on the
18 amount of revenue generated from the new technology.
19 The policy shall also ensure that the inventor or
20 discoverer is compensated competitively to similarly
21 situated institutions; and

22 2. Establish policies for institutions within The Oklahoma
23 State System of Higher Education to:

1 a. encourage development of a product, process, or idea,
2 regardless of whether ~~or not~~ the product, process, or
3 idea is protectable under the intellectual property
4 laws of the United States or of this state, and to
5 encourage the institutions to take such actions as may
6 be appropriate in order to promote the development of
7 products, processes, or ideas having a potential for
8 the improvement or advancement of:

9 (1) medical technology,

10 (2) biotechnology,

11 (3) energy technology,

12 (4) telecommunications technology,

13 (5) chemical technology,

14 (6) industrial technology, ~~and~~

15 (7) aerospace and defense, and

16 (8) such other technologies as are deserving of the

17 resources and assistance available through

18 institutions and the faculty and students of

19 institutions within The Oklahoma State System of

20 Higher Education,

21 b. develop appropriate methods to maintain a system for
22 recording the nature of research being conducted at
23 institutions within The Oklahoma State System of
24 Higher Education and the results of research having

1 potential for protection pursuant to the intellectual
2 property laws of the United States or of this state,
3 and

4 c. develop a system to account for:

- 5 (1) expenses associated with research and development
6 conducted on the premises of or with the
7 assistance of an institution within The Oklahoma
8 State System of Higher Education,
- 9 (2) the financial relationships, if any, established
10 between those institutions and private business
11 entities,
- 12 (3) the acquisition of equity interests in private
13 business entities,
- 14 (4) the receipt of royalty income or other income
15 related to the sale or other disposition of
16 products, processes, or ideas by institutions or
17 private business entities with which the
18 institution has established a financial
19 arrangement,
- 20 (5) the gains or losses upon the sale or other
21 disposition of equity interests in private
22 business entities, and
- 23 (6) such other matters relating to the income and
24 expenses associated with the research,

development, intellectual property protection,
marketing, distribution, or other matters as the
State Regents determine to be appropriate.

B. Any policy created by the State Regents or institutions
within The Oklahoma State System of Higher Education pursuant to
this section shall be reviewed every seven (7) years to ensure that
the policy is still competitive among comparable institutions of
higher education.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation
of the public peace, health, or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated
04/13/2026 - DO PASS.